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TAB 25



Board of Education Report

File #: Rep-070-24/25, **Version:** 1

Adoption of Resolution Authorizing Application to the Zero Emission School Bus and Infrastructure (ZESBI) Incentive Project and Authorizing Performance of All Functions Needed to Participate in the Project

October 22, 2024

Eco-Sustainability Office and Transportation Services Branch

Action Proposed:

Adopt the attached Board of Education (Board) Resolution (Attachment A) which authorizes:

- participation in the Zero Emission School Bus and Infrastructure (ZESBI) Incentive Project
- submission of an application to the ZESBI Incentive Project
- if funding is approved:
 - Authorize the Chief Procurement Officer or designee to execute all instruments necessary to accept ZESBI grant funds, including entering into a binding agreement(s) on behalf of the District, and to execute all instruments necessary, as legally permissible, to implement the Project, including the purchase of equipment and materials
 - Authorize the Chief Eco-Sustainability Officer, the Director of Transportation, or designee(s) to act, as needed, to ensure the terms are satisfied

The final terms and conditions of the agreement(s) shall be subject to legal, finance and procurement approval. The final executed agreement(s) is further subject to ratification by the Board.

Background:

The Zero-Emission School Bus and Infrastructure (ZESBI) incentive project provides local education agencies (LEAs) incentives to replace heavy-duty internal combustion engine (ICE) school buses with new zero-emission school buses. Additional incentives are provided for the installation of charging or fueling infrastructure and related activities. ZESBI is co-administered by California Air Resources Board (CARB), which provides the incentives for the zero-emission school bus vehicles, and the California Energy Commission (CEC), which provides the incentives for charging infrastructure. A total of \$500 million is appropriated from Senate Bill (SB) 114 for ZESBI in Fiscal Year 2023-24, of which \$375 million is allocated to support purchases of qualifying zero-emission (ZE) school buses and \$125 million is allocated to support charging infrastructure and associated costs.

The ZESBI project has a three-step application process, Parts A, B, and C. Staff submitted an application under Part A to support the electrification of the San Julian Bus Garage fleet. The application includes the scrapping of 20 ICE school buses that will be replaced with 20 electric school buses to be housed at 604 East 15th Street, Los Angeles, CA 90015. The application also includes 20 chargers and associated infrastructure to be located at 1425 South San Pedro Street, Los Angeles, CA 90015.

Recently, staff received notice that the Application Part A submission was preliminarily approved to advance to Application Part B, and funding has been reserved for the District's application. In Application Part B, which will open in Fall 2024, the District will be required to submit additional bus and infrastructure documentation and accept funding within 30 calendar days of notification. This includes a Board Resolution authorizing participation in the ZESBI project and designating representatives to execute and carry out the terms of the grant (Attachment A). If funding is not accepted within 30 calendar days, it may be reallocated to another applicant, and approval of late Application B submittals is at the discretion of CARB or its administrators. If Application Part B is approved, the District will advance to Application Part C, in which applicants will select their new zero-emission school bus(es) and sign a funding contract.

Expected Outcomes:

Upon adoption of the resolution, designated staff will perform all necessary application- and grant-related functions for the ZESBI Incentive Project, including the execution of all necessary instruments needed to administer, and comply with the requirements for grant awards totaling \$7.4 million.

Board Options and Consequences:

Approval of this action will allow staff to proceed with necessary application- and grant-related activities for the ZESBI Incentive Project. If the proposed action is not approved, the District will be unable to comply with the grantor's requirements and will forfeit the funding opportunity.

Policy Implications:

Staff's proposal aligns with the 2022-26 Strategic Plan Pillar 4 (Operational Effectiveness) by modernizing infrastructure and working towards ensuring that our school buses and infrastructure minimize harm to climate and the environment and reflect clean transportation standards. This proposal further supports the District's resolution "Transitioning Los Angeles Unified School District to 100% Clean, Renewable Energy Resulting in Healthier Students and More Sustainable, Equitable Communities" (Res-018-19/0).

Budget Impact:

This is a one-time grant opportunity to offset the cost of purchasing twenty (20) electric school buses and electric chargers. The total cost of the electric school buses and chargers is approximately \$8.8 million, of which the ZESBI funding will supplement \$7.4 million. The remaining \$1.4 million shall be paid for with General Funds. Due to the payment schedule required under the terms of the grant, it is possible that additional General Funds may be needed to front fund payments.

Student Impact:

Approval of this action allows the District to continue to participate in the ZESBI application process, and if awarded, to execute and provide all necessary documents needed for grant compliance. If awarded, this grant will directly benefit students by enabling the District's Transportation Services Branch to improve the timely delivery of students to schools. New buses have significantly fewer breakdowns, which reduces repair downtimes and transportation delays. The zero-emission buses will also improve student health by limiting their exposure to transportation-related air pollution.

Equity Impact:

San Julian Bus Garage is centrally located within LAUSD boundaries and its buses serve over 6,600 students. Of all LAUSD locations considered for this grant, the San Julian Bus Garage aligned most closely with grant deadlines given the availability of power.

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Component	Score	Score Rationale
Recognition	3	This award will support the District's efforts to transition to 100% clean renewable energy resulting in healthier students by limiting their exposure to harmful pollutants and creating more equitable communities. This will also directly benefit students by improving the timely delivery of students to schools as new buses have significantly fewer breakdowns.
Resource Prioritization	3	The new, zero-emission electric school buses will benefit all students as they will contribute to improve the overall route coverage for all students in the District.
Results	3	These electric school buses will help ensure students get to school on time every day, so they have the opportunity to learn.
TOTAL	9	

Issues and Analysis:

Under the terms and conditions of this grant, LAUSD shall, at a minimum, be responsible for and/or agree to the following:

- Responding to requests for information and documentation from CARB or its Administrator within 10 business days.
- Coordinating with local electric utility provider(s) to prepare for the installation of infrastructure.
- Within 10 days of the execution of the grant agreement, signing and submitting a purchase order or other binding agreement for the new school buses.
- Dismantling and scrapping the 20 ICE buses within 24 months of the delivery of the new school buses.
- Submitting an initial request for payment within 45 calendar days of vehicle delivery to CARB or its Administrator.
- Coordinating with CHP to ensure that the new zero-emission school bus is inspected and receives a CHP 292 or equivalent within 30 calendar days of the delivery of the new school bus.
- Paying the HVIP approved dealer the amount due within 60 calendar days of the new, zero-emission school bus passing CHP certification.
- Ensuring the maintenance and operation of the Electric Vehicle Supply Equipment (EVSE), including the hardware and software, charging stations, cables, connectors, and related equipment used to charge EV batteries, for no less than six years.
- Telematics reporting requirements submitted on a quarterly basis.

Attachments:

Attachment A - Resolution Authorizing Application to the Zero Emission School Bus and Infrastructure (ZESBI) Incentive Project and Authorizing Performance of All Functions Needed to Participate in the Project

Informatives:

Not Applicable

Submitted:

10/11/24

RESPECTFULLY SUBMITTED,**APPROVED BY:**
ALBERTO M. CARVALHO
Superintendent
PEDRO SALCIDO
Deputy Superintendent
Business Services and Operations**REVIEWED BY:****APPROVED & PRESENTED BY:**
DEVORA NAVERA REED
General Counsel
DANIEL KANG
Director
Transportation Services Branch☒ Approved as to form.**REVIEWED BY:**
CHRISTOS CHRYSILIOU
Chief Eco-Sustainability Officer
Eco-Sustainability Office
NORBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.

**ATTACHMENT A
LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report**

**RESOLUTION AUTHORIZING APPLICATION TO THE ZERO EMISSION SCHOOL
BUS AND INFRASTRUCTURE (ZESBI) INCENTIVE PROJECT AND AUTHORIZING
PERFORMANCE OF ALL FUNCTIONS NEEDED TO PARTICIPATE
IN THE PROJECT**

WHEREAS, Proposition 98 provides funding for K-12 education and community colleges; and

WHEREAS, Senate Bill 114 allocates Proposition 98 funds to the California Air Resources Board (CARB) and the California Energy Commission (CEC) to fund grants to local educational agencies for zero-emission school buses and supporting infrastructure; and

WHEREAS, with these funds CARB and CEC created the ZESBI incentive project; and

WHEREAS, CALSTART has been selected to administer ZESBI on behalf of CARB and CEC; and

WHEREAS, CALSTART requires the submission of information, on standardized forms (application forms), to determine eligibility and to prioritize projects; and

WHEREAS, if selected to receive funding, participation in ZESBI requires the grantee to enter into a grant agreement with CALSTART that includes fulfillment of participation terms and conditions"; and

WHEREAS, this opportunity advances the goals of the 'Transitioning LAUSD to 100% Clean, Renewable Energy, Resulting in Healthier Students and More Sustainable, Equitable Communities' Board Resolution by securing funding for electric buses and infrastructure at the San Julian Bus Garage, contributing to the district's goal of achieving 100% clean, renewable energy in its transportation sector by 2040;

NOW THEREFORE, BE IT RESOLVED THAT THE BOARD OF EDUCATION OF THE CITY OF LOS ANGELES:

1. Authorizes participation in the ZESBI Incentive Project;
2. Authorizes submission of an application to the ZESBI Incentive Project; and
3. Authorizes the Chief Procurement Officer or designee, to enter into a binding agreement on behalf of the District, and authorizes the Chief Eco-Sustainability Officer, the Director of Transportation, or designee to act, as needed, to ensure the terms are satisfied.

Approved and adopted the 22nd Day of October 2024:

Dr. George Mckenna, Board Member

Jackie Goldberg, Board President

Dr. Rocio Rivas, Board Member

Kelly Gonez, Board Member

Scott M. Schmerelson, Board Vice President

Tanya Ortiz Franklin, Board Member

Nick Melvoin, Board Member

CERTIFICATION

I, the undersigned, hereby certify that the foregoing Resolution was duly approved and adopted by the Board of Education of the City of Los Angeles at a meeting thereof held on the 22nd day of October 2024 by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael A. McLean
Executive Officer of the Board of Education

DATE